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EXTRAORDINARY

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PART I : SECTION (I) — GENERAL
Government Notifications

L.D.B 13/2013 (Regulations)

SAMURDHI ACT, No. 1 OF 2013

REGULATIONS made by the Minister of Social Empowerment and Welfare under section 42 of the Samurdhi Act, No. 1 of 2013.

S. B. DISSANAYAKE (M. P.),
Minister of Social Empowerment and Welfare

Colombo,
06th March 2017.

REGULATIONS

1. These Regulations may be cited as the Samurdhi Regulations, No.1 of, 2017.
2. These regulations specify-
 - (a) the criteria in respect of the selection of samurdhi beneficiaries;
 - (b) the Constitution and Administration Structure of samurdhi community based organizations, samurdhi regional organizations and Samurdhi Community Based Banking Union and the provisions relating to the first meetings thereof;
 - (c) the common logo for the samurdhi programme; and
 - (d) the procedure for the settlement of disputes that may arise, in performing the functions of samurdhi community based organizations, samurdhi regional organizations and Samurdhi Community Based Banking Union.



3. (1) (a) Every person or family unit entitled to receive or in receipt of any welfare benefit, in terms of the provisions of section 44(h) of the Act, on the day immediately preceding the date of the coming into operation of these regulations;
- (b) Every person or family unit approved by the Director General on the recommendation of the Divisional Secretary of a relevant Divisional Secretaries Division who functions as an Advisor to the samurdhi district committee established for the Administrative District within which such Divisional Secretaries Division is situated; and
- (c) Every person or family unit approved by the Director General on the recommendation of the District Secretary of a relevant Administrative District who functions as an Advisor to the samurdhi district committee established for that Administrative District,

shall be selected as a samurdhi beneficiary and be entitled to receive the samurdhi subsidy allowance under the Samurdhi Programme.

(2) Any person who is a casual or permanent employee of the Department or a family unit which includes a casual or permanent employee of the Department, shall not be eligible to be selected as a samurdhi beneficiary.

4. (1) The Constitution and Administration Structure of every—

- (a) samurdhi community based organization shall be as specified in Schedule A hereto;
- (b) samurdhi regional organization shall be as specified in Schedule B hereto;
- (c) Samurdhi Community Based Banking Union shall be as specified in Schedule C hereto.

(2) A copy of the Constitution and Administration Structure of every samurdhi community based organization, samurdhi regional organization (hereinafter referred to as the “Organization”) and Samurdhi Community Based Banking Union (hereinafter referred to as the “the Union”), prepared incorporating the details identical to each such Organization or Union as specified in the relevant Schedule referred to in paragraph (1), shall be submitted to the Director General within a period of three months from the date of publication of these regulations.

(3) The Director General shall issue a Certificate to every Organization and the Union which submits its Constitution and Administration Structure to the Director General in compliance with the provisions of paragraph (2), within a period of forty five days of the receipt thereof.

5. (1) The first general meeting -

- (a) of every Organization shall be held within a period of one month; and
- (b) of the Union shall be held within a period of two months, from the date of coming into operation of these regulations.

(2) An officer of the Department authorized by the Director General shall, take necessary steps to convene such meetings and preside at such meetings, and the following business shall be conducted thereat:-

- (a) election of the first Governing Body of the relevant Organization or the Union, by the majority of votes of the members;
- (b) adoption of a resolution to determine the membership fee;
- (c) adoption of a resolution to determine the location of the principal office of the relevant Organization or the Union;

- (d) fixing a date for the first meeting of the Governing Body; and
- (e) adoption of any other resolutions that may be necessary for the performance of the functions of the relevant Organization or the Union.

6.(1) Where it appears to the Director General himself, or he receives a complaint in respect of any Organization or the Union to which a Certificate has been issued under regulation 4(3) that such organization or the Union acts in contravention of the provisions of its Constitution and Administration Structure submitted to him under regulation 4(2), the Director General shall cause an inquiry to be held by a team of officers authorized by him in that behalf .

- (2)(a) The team of officers appointed under paragraph (1), shall hold an inquiry on the matter referred to them by the Director General under paragraph (1) and prepare a report on such inquiry including the statements taken at the inquiry, the copies of all relevant documents examined at the inquiry and their recommendations on the steps to be taken by the Director General.
- (b) An inquiry under sub- paragraph (a) shall be concluded within a period of one month from the date of reference for inquiry.

(3) Where the inquiry was held in respect of a samurdhi community based organization, and it has been proved to the satisfaction of the Director General at the conclusion of the inquiry, that such samurdhi community based organization has acted in contravention of the provisions of its Constitution and Administrative Structure submitted to him under regulation 4(2), such Organization-

- (a) shall be deemed to be not functional in the accomplishment of its objects and be subject to the steps taken by the Director General under the provisions of section 14 of the Act; and
 - (b) may be subject to the cancelation of the certificate issued to such Organization under regulation 4(3).
- (4)(a) Where the inquiry was held in respect of a samurdhi regional organization or a Samurdhi Community Based Banking Union, and it has been proved to the satisfaction of the Director General at the conclusion of the inquiry, that such Organization or the Union has acted contravening the provisions of its Constitution and Administrative Structure submitted to him under regulation 4(2), he shall give an opportunity to the Governing Body of the relevant Organization or Union to explain the reason for such contravention .
- (b) Where the Director General is of the view that the relevant Organization or the Union has reasonable causes for such contravention and needs assistance or guidelines for the due function of such Organization or the Union, he shall provide necessary assistance or issue guidelines to such Organization or Union.
 - (c) Where the Director General is of the view that there is no reasonable cause for such contravention he may-
 - (i) issue a notice dissolving the existing governing body of the relevant Organization or the Union;
 - (ii) appoint an interim governing body comprising of not less than three and not more than five officers from the Department to implement the objectives of such Organization or the Union until a new governing body is appointed;
 - (iii) direct the interim governing body to hold a general meeting not later than sixty days of his notice for the purpose of electing a new governing body for the relevant Organization or the Union.

- (iv) if necessary, cancel the certificate issued to such Organization or Union under regulation 4(3) and direct the new governing body to submit a new Constitution and Administration structure of the relevant Organization or the Union as specified in regulation 4(2).

7. The Director General shall take steps to issue a membership card substantially in the format specified in Schedule 'D' hereto to every member of every samurdhi community based organization.

8. (1) The logo set out in Schedule 'E' hereto shall be the common logo of the samurdhi programme (hereinafter referred to as the "samurdhi logo") and be used in every official document, communication, form or notice under the samurdhi programme.

(2) The prior written approval of the Director General shall be obtained for the use of samurdhi logo for any purpose under the samurdhi programme.

(3) Any person who uses the samurdhi logo for an unauthorized purpose shall be guilty of an offence under the Act.

9. (1) Where there is a dispute which has arisen among the members of an Organizations or the Union, in performing its functions under the Act, the Governing body of the relevant Organization or the Union, in consultation with the Director General or the officer authorized by the Director General to engage in the settlement of disputes, shall take steps to settle such dispute.

(2) The Governing body of the relevant Organization or the Union shall keep a written report of the steps taken to settle any such dispute and inform the same in writing to the parties to the dispute.

10. (1) Where there is a dispute which has arisen between two Organizations or among number of Organizations, in performing its functions under the Act, the Governing body of any one of the relevant Organizations shall, forthwith make a written complaint to the Director General mentioning the other party or parties to the dispute in such complaint.

(2) The Director General shall appoint a Committee comprising of not less than three members for the purpose of settling the dispute in respect of which a complaint has been made under paragraph (1).

(3) The Committee appointed under paragraph (2), shall include an officer from the Department and such number of members nominated from among the members of the Governing Bodies of the Organizations which are not the parties to the relevant dispute.

(4) The Committee appointed under paragraph (2), shall keep a written report of the steps taken to settle any such dispute and inform the same in writing to the Director General and to the parties to the dispute.

11. Any Organization aggrieved by the steps taken under regulations 9 or 10, may appeal to the Secretary to the Ministry.

12. (1) Where there is a dispute which has arisen between two or more samurdhi community based banks or samurdhi community based banking societies, in performing their functions under the Act, the Governing body of any one of the relevant banks or banking societies shall, forthwith make a written complaint to the Director General mentioning the other party or parties to the dispute in such complaint.

(2) The Director General shall appoint a Committee comprising of not less than three members for the purpose of settling the dispute in respect of which a complaint has been made under paragraph (1).

(3) The Committee appointed under paragraph (2), shall include an officer from the Department and such number of members nominated from among the members of the Governing Bodies of the banks and banking societies which are not the parties to the relevant dispute.

(4) The Committee appointed under paragraph (2), shall keep a written report of the steps taken to settle any such dispute and inform the same in writing to the Director General and to the parties to the dispute.

13. Any samurdhi community based bank or samurdhi community based banking society aggrieved by the steps taken under regulation 12, may appeal to the Board of Management of the samurdhi community based banks and samurdhi community based banking societies, appointed under the section 33 of the Act.

14. In these regulations , unless the context otherwise requires-

“Act” means the Samurdhi Act, No. 1 of 2013;

“Director General” means the Director General of the Department appointed under section 3 of the Act;

“Department” means the Department of Samurdhi Development established under section 2 of the Act;

“Governing Body” means the Executive Council, the Board of Directors or the Board of Management of the relevant Organization or Union, as specified in the relevant Constitution and Administration Structure, or the Board of Management of a samurdhi community based bank or the Executive Committee of a samurdhi community based banking society, as the case may be.

SCHEDULE A

CONSTITUTION AND ADMINISTRATIVE STRUCTURE OF THE SAMURDHI COMMUNITY BASED ORGANIZATION

PREFACE

For the promotion of the economic development process in accordance with the Samurdhi Act No 1 of 2013, enacted by the Parliament of the Democratic Socialist Republic of Sri Lanka and as the individual, the family, the group and the community are the priorities of the Act, and as the initial unit in the zonal, district and national level coordination network to revitalize the gigantic objective of empowering the national policy for the eradication of poverty and the ensuring of social justice, this samurdhi community based organizations is established for initiating the important and extensive aim of shouldering the responsibility of performing the national requirement; and we affirm that this Organization is established to achieve the objectives of the Act, in the area of authority irrespective of national, religious and political divisions, for the performance of all functions in an open and transparent manner, for the endowment of the justice of the law and equal assistance of the law to all members, for ensuring that the staff and the members would always act in good faith, for the development of the habits of being thrifty, law abiding, courteous, eco-friendly, self-confident, creative and collectively responsible, to unite the community through harmony so that the community would not be divided on party politics thereby ensuring national unity, to build morality for the prevention of the erosion of values and for the creation of opportunities for everyone to have reasonable access to the available resources and services.

CHAPTER 01

Basic matters

1. Name :samurdhi community based organization of.....(Name of the Area)

2. Area of authority :samurdhi community based organization of..... (village)of(GramaNiladhariDivision) within the area of authority of thebank, within the area of authority of the(local authority), in the Divisional Secretaries Division of.....in the administrative district of.....of theprovince.(hereinafter referred to as the “Area of Authority”)

3. Address:

4. Vision: “An empowered prosperous community”

5. Mission:To contribute to the process of national development by empowering the community in every respect, while establishing advanced attitudinal development among the community of the community based area of authority, by the promotion of livelihood activities replete with management and communication skills, ,eradicating poverty and achieving economic, social and cultural development and social empowerment.

6.Objectives, Powers and Functions: samurdhi community based organization of (hereinafter referred to as the “Organization”) hereby undertakes to exercise and perform the powers and functions specified respectively in section 11 and 12 of the Samurdhi Act, No.1 of 2013, in order to accomplish the objectives specified in section 10 of that Act.

CHAPTER 02

Membership

7. Eligibility for membership:

(1) A samurdhi beneficiary who is a permanent resident of the Area of Authority, being an adult with the appropriate physical and mental fitness is eligible to obtain membership of samurdhi community based organization of

(2) A person who is qualified for membership of the Organization shall submit the application for membership along with the relevant membership fee. Every applicant shall nominate a successor in the application.

(3) Every member is liable to pay a monthly membership fee determined atwa general meeting .

(4) The Executive Council may reject, to grant the membership. Any member who is dissatisfied with a decision of the Executive Council may appeal to the Director General of the Department.

(5) The Secretary of the Executive Council shall maintain a register of the members.

8.(1) Membership shall cease due to:-

- (i) non-payment of membership fees;
- (ii) absence from three (3) consecutive meeting of the organization without notice;
- (iii) leaving the Area of Authority of the organization;
- (iv) not being physically and mentally fit to hold the membership;
- (v) non active participation at group work;
- (vi) being subject to a sentence of imprisonment imposed by court of law;
- (vii) voluntary resignation or death.

(2) Where any member ceases to hold the member his successor may be granted membership.

CHAPTER 03

Executive Council

9.(1) The members of the Executive Council shall consist of the:-

- (i) Chairman;
- (ii) Vice Chairman;
- (iii) Secretary;
- (iv) Assistant Secretary;
- (v) Treasurer; and
- (vi) other members (specify the number of members not less than six members and not more than fifteen members),

elected at a general meeting by the majority of votes of the members present and voting.

- (2) Executive Council shall meet at least twice a month.
- (3) The quorum for a meeting of the Executive Council shall be three members. The Secretary may call an Executive Council meeting at any time at the request of the majority of the members of the Executive Council.
- (4) The Chairman shall preside at every meeting of the Executive Council. In the absence of the Chairman, Vice Chairman shall act as the Chairman. In the absence of both, members shall select one person among the Secretary, Assistant Secretary or the Treasurer to preside the meeting.
- (5) Only one person per family shall represent the Executive Council.
- (6) Absence from any three consecutive meetings of the Executive Council without notice shall disqualify a member from being a member of the Executive Council.
- (7) An Internal Auditor shall be elected at the time of the election of members of the Executive Council. The Internal Auditor shall not be a member of Executive Council.
- (8) The members of the Executive Council shall be elected for a period of one year at the first general meeting by the majority of votes of the members. The Department of Samurdhi Development (hereinafter referred to as the "Department") shall be notified whenever a new Executive Council or a member of the Executive Council is elected.
- (9) Any person who ceases to be a member of the Executive Council shall be eligible for re-appointment.
- (10) Every ballot of the Executive Council shall be conducted by taking open votes of the members.
- (11) Executive Council may conduct a secret ballot when they deem it appropriate.

10. Powers and Functions of the members of the Executive Council.

(1) Powers and Functions of the Chairman shall be to -

- (i) preside at every meetings of the organization. In the absence of the Chairman, the Vice Chairman shall preside the meeting and in the absence of both, the members at the meeting shall elect another member to preside the meeting;
- (ii) authenticate every minutes of all meetings and other reports;
- (iii) receive communications in respect of all official functions of the organization;
- (iv) represent the Organization;
- (v) conduct every meetings of the organization in accordance with the agenda;
- (vi) ensure the proper performance of the objectives of the constitution;
- (vii) provide leadership in respect of activities leading to the development and financial promotion of the Organization;
- (viii) enhance the cordial relationship amongst the members and mobilization of the members of the organization;
- (ix) operate the account maintained in the relevant samurdhi community based bank, with the assistance of the Treasurer;

(2) Powers and Functions of the Secretary shall be to -

- (i) send notices of general meetings and executive committee meetings on the due date;
- (ii) keep records and files in safe custody;
- (iii) forward progress reports of the organization and minutes of meetings according to Departmental requirements to the Department.
- (iv) prepare the minutes of every meetings;
- (v) acknowledge all documents referred to the organization, and refer the same to the Executive Council;
- (vi) to send all written communications or email messages to be sent by the Organization;
- (vii) maintain the register of members;
- (viii) prepare and submit the constitution of the Organization to the Director General, subject to the directions of the Chairman;
- (ix) safeguard the official seal of the organization to prevent it from being misused;

(3) Powers and Functions of the Treasurer shall be to -

- (i) collect membership fees;
- (ii) maintain the cash in hand according to Departmental orders;
- (iii) deposit all monies exceeding the authorized limit for cash in hand in the relevant samurdhi community based bank;
- (iv) prepare the budget of the organization;
- (v) take steps for financial promotion;
- (vi) manage and maintain the financial and material resources of the Organization;
- (vii) maintain an inventory for the material resources of the organization;
- (viii) assist the Department in auditing financial and material resources of the Organization;
- (ix) obtain signature of the Chairman for all reports and documents of the financial division, and authenticate by placing his signature.
- (x) assist the Chairman in operating the account maintained in the relevant samurdhi community based bank;
- (xi) maintain the accounts of the Organization and keep the books of accounts;
- (xii) safeguard all books of accounts and all documents in respect of the fund of the Organization.

CHAPTER 04

Meetings

11. Annual General Meeting

The Secretary shall, under the directions of the Executive Council, conduct the annual general meeting during the first quarter of each calendar year and the following business shall be conducted at every annual general meeting:-

- (a) election of new office bearers;
- (b) obtain approval from the membership for the accounts of the previous year;
- (c) consider the progress review report of the previous year;

12. Special general meeting

- (1) The Secretary shall convene a special general meeting when a written request is made to the Secretary with signatures of not less than $\frac{1}{4}$ of the members to hold a general meeting.
- (2) A special general meeting may be convened whenever the Executive Council decides that it is necessary to convene a special general meeting.

13. Monthly general meeting

- (1) The members of the organization shall hold a general meeting once in every month, and consideration and recommendation of applications made by the members to obtain loans from the respective community based bank, and the monitoring of loans obtained by members from the samurdhi community based bank and the consideration of the said monitoring reports shall especially be done at this meeting.
- (2) The action plan for the succeeding year shall be prepared and adopted at the first monthly general meeting held after the annual general meeting.
- (3) The Treasurer or his representative shall table a monthly income and expenditure report at every monthly general meeting and resolutions shall be adopted and recorded for its consideration and the depositing of the balance in the account maintained at the samurdhi community based bank, after retaining a substantial cash balance for the revolving fund

14. Notices

- (1) The Secretary shall give notice of the meetings to all members eligible to attend the respective meeting prior to 14 days of that meeting in an appropriate:

Provided that, a notice of a special general meetings, shall be sent at least prior to 5 working days.

- (2) In the case of a meeting held due to an urgent requirement respective notice may be sent through short message service to the mobile telephone number provided last by the respective member or by sending an email to the email address, if any, provided by the member.

CHAPTER 05

Financial matters

15. Funds of the Organization-

- (1) The Organization shall have its own fund.
- (2) There shall be paid into such Fund-
 - (a) membership fees;
 - (b) donations approved by the Director General;
 - (c) income earned through projects operated, and contracts implemented by the organization according to the directives of the Department;
 - (d) departmental grants;
 - (e) loan interest;
 - (f) funds held by the Organization or deposited in any bank in the name of the Organization immediately prior to the date of coming in to operation of this constitution;
- (3) All funds of this community based organization shall be deposited in an account in a relevant community based bank in that area.
- (4) The Funds of the Organization may be utilized to fulfill the financial requirements of the members, through introducing different methodologies such as group purchase or instant loan projects.
- (5) The Executive Council may from time to time, subject to a resolution passed by the majority votes of the members, decide on the procedures and rules for the implementation of methodologies referred to above.
- (6) The Funds of the Organization shall only be used for achieving the objectives of the organization.
- (7) The funds of the Organization shall be utilized-
 - (a) for welfare activities of the members of the Organization, of the Area of Authority of the Organization, organized by the executive council and adopted at a general meeting;
 - (b) for conducting necessary programmes for the development of the knowledge and skills of the members;
 - (c) for maintaining the principal office of the Organization;
 - (d) for purchasing thenecessary equipment and stationery for the Organization;
 - (e) for purchasing any lawful item or service approvedas necessary for the Organization by the Executive Council.
 - (f) community based Organization may grant to members the distress loans for financial requirements under the following categories :-

- (i) an illness of a member, or of any family member;
 - (ii) death of a member, or of any family member;
 - (iii) damages to houses or property due to a natural disaster;
 - (iv) temporary disability of a member, or of a family member;
 - (vii) any other similar circumstance approved by the Executive Council
- (8) The terms and conditions subject to which distress loans are issued by the Organization shall be formulated by the Executive Council, subject to the directions of the Board of Management of the samurdhi community based banks and samurdhibanking societies appointed under section 33 of the Samurdhi Act.

SCHEDULE B

CONSTITUTION AND ADMINISTRATIVE STRUCTURE OF THE SAMURDHI REGIONAL ORGANIZATION

PREFACE

For the promotion of the economic development process in accordance with the Samurdhi Act No 1 of 2013, enacted by the Parliament of the Democratic Socialist Republic of Sri Lanka and as the individual, the family, the group and the community are the priorities of the Act, and as the initial unit in the zonal, district and national level coordination network to revitalize the gigantic objective of empowering the national policy for the eradication of poverty and the ensuring of social justice, this samurdhi regional organization is established for initiating the important and extensive aim of shouldering the responsibility of performing the national requirement; and we affirm that this Organization is established to achieve the objectives of the Act in the area of authority irrespective of national, religious and political divisions, for the performance of all functions in an open and transparent manner, for the endowment of the justice of the law and equal assistance of the law to all members, for ensuring that the staff and the members would always act in good faith, for the development of the habits of being thrifty, law abiding, courteous, eco-friendly, self-confident, creative and collectively responsible, to unite the community through harmony so that the community would not be divided on party politics thereby ensuring national unity, to build morality for the prevention of the erosion of values and for the creation of opportunities for everyone to have reasonable access to the available resources and services.

CHAPTER 01

Basic matters

1. Name :samurdhi regional organization of.....(Name of the Area)

2. Area of authority :samurdhi regional organization of..... (village) of(Grama Niladhari Division) within the area of authority of the Samurdhi Community Based Banking Union, within the area of authority of the(local authority), in the Divisional Secretaries Division of.....in the administrative district of.....of theprovince.(hereinafter referred to as the “Area of Authority”)

3. Address:

4. Vision: “An empowered prosperous community”

5. Mission: To contribute to the process of national development by empowering the community in every respect, while establishing advanced attitudinal development among the community of the community based area of authority, by the promotion of livelihood activities replete with management and communication skills, eradicating poverty and achieving economic, social and cultural development and social empowerment.

6. Objectives, Powers and Functions: samurdhi regional organization of (hereinafter referred to as the “Organization”) hereby undertake to exercise and perform the powers and functions specified respectively in section 17 and 18 of the Samurdhi Act, No.1 of 2013, in order to accomplish the objectives specified in section 16 of that Act.

CHAPTER 02

Membership

7 (1) Members of this organization shall be as follows -

- (a) Chairmen of all samurdhi community based organizations operating within the area of authority;
- (b) the officer of the Departmental officer in charge of a region;
- (c) senior managers of the samurdhi community based banking societies established within the area of authority under section 29 of the Samurdhi Act; and
- (d) three persons nominated by the Director General, engaged in development activities in the region.

8. Membership shall be ceased due to -

- (i) absence from three (3) consecutive meeting of the organization without notice;
- (ii) leaving the Area of Authority of the organization;
- (iii) not being physically and mentally fit to hold the membership;
- (iv) non active participation at group work;
- (v) being subject to a sentence of imprisonment imposed by court of law;
- (vi) voluntary resignation or death.

CHAPTER 03

Executive Council

9.(1) The members of the Executive Council shall consist of the :

- (i) Chairman;
- (ii) Vice Chairman;
- (iii) Secretary;
- (iv) Assistant Secretary;
- (v) Treasurer; and
- (vi) other members (specify the number of members not less than six members and not more than fifteen members),

elected at a general meeting by the majority of votes of the members present and voting.

(2) Executive Council shall meet at least twice a month.

(3) The quorum for a meeting of the Executive Council shall be three members. The Secretary may call an Executive Council meeting at any time at the request of the majority of the members of the Executive Council.

- (4) The Chairman shall preside at every meeting of the Executive Council. In the absence of the Chairman, Vice Chairman shall act as the Chairman. In the absence of both, members shall select one person among the Secretary, Assistant Secretary or the Treasurer to preside the meeting.
- (5) Only one person per family shall represent the Executive Council.
- (6) Absence from any three consecutive meetings of the Executive Council without notice shall disqualify a member from being a member of the Executive Council.
- (7) An Internal Auditor shall be elected at the time of the election of members of the Executive Committee. The Internal Auditor shall not be a member of Executive Council.
- (8) The members of the Executive Council shall be elected for a period of one year at the first general meeting by the majority of votes of the members. The Department of Samurdhi Development (hereinafter referred to as the "Department") shall be notified whenever a new Executive Council or a member of the Executive Council is elected.
- (9) Any person who ceases to be a member of the Executive Council shall be eligible for re-appointment.
- (10) Every ballot of the Executive Council shall be conducted by taking open votes of the members.
- (11) Executive Council may conduct a secret ballot when they deem it appropriate.

10. Powers and Functions of the members of the Executive Council.

- (1) Powers and Functions of the Chairman shall be to -
 - (i) preside at every meetings of the organization. In the absence of the Chairman, the Vice Chairman shall preside the meeting and in the absence of both, the members at a general meeting shall elect another member to preside the meeting;
 - (ii) authenticate every minutes of all meetings and other reports;
 - (iii) receive communications in respect of all official functions of the Organization;
 - (iv) represent the Organization;
 - (v) conduct every meetings of the Organization in accordance with the agenda;
 - (vi) ensure the proper performance of the objectives of the constitution;
 - (vii) provide leadership in respect of activities leading to the development and financial promotion of the Organization;
 - (viii) enhance the cordial relationship amongst the members and mobilization of the members of the Organization;
 - (ix) operate the account maintained in the relevant samurdhi community based bank, with the assistance of the Treasurer;

(2) Powers and Functions of the Secretary shall be to -

- (i) send notices of general meetings and executive committee meetings on the due date;
- (ii) keep records and files in safe custody;
- (iii) forward progress reports of the Organization and minutes of meetings according to Departmental requirements to the Department.
- (iv) prepare the minutes of every meetings;
- (v) acknowledge all documents referred to the Organization, and refer the same to the Executive Council;
- (vi) to send all written communications or email messages to be sent by the Organization;
- (vii) maintain the register of members;
- (viii) prepare and submit the constitution of the Organization to the Director General, subject to the directions of the Chairman;
- (ix) safeguard the official seal of the organization to prevent it from being misused;

(3) Powers and Functions of the Treasurer shall be to -

- (i) collect membership fees;
- (ii) maintain the cash in hand according to Departmental orders;
- (iii) deposit all monies exceeding the authorized limit for cash in hand in the relevant samurdhi community based bank;
- (iv) prepare the budget of the Organization;
- (v) take steps for financial promotion;
- (vi) manage and maintain the financial and material resources of the Organization;
- (vii) maintain an inventory for the material resources of the Organization;
- (viii) assist the Department of Samurdhi Development in auditing financial and material resources of the Organization;
- (ix) obtain signature of the Chairman for all reports and documents of the financial division, and authenticate by placing his signature.
- (x) assist the Chairman in operating the account maintained in the relevant samurdhi community based bank;
- (xi) maintain the accounts of the Organization and keep the books of accounts;
- (xii) safeguard all books of accounts, and all documents in respect of the fund of the Organization.

CHAPTER 04

Meetings

11. Annual General Meeting

The Secretary shall, under the directions of the Executive Council, conduct the annual general meeting during the first quarter of each calendar year and the following business shall be conducted at every annual general meeting:-

- (a) election of new office bearers;
- (b) obtain approval from the membership for the accounts of the previous year;
- (c) consider the progress review report of the previous year;

12. Special general meeting

- (1) The Secretary shall convene a special general meeting when a written request is made to the Secretary with signatures of not less than $\frac{1}{4}$ of the members to hold a general meeting.
- (2) A special general meeting may be convened whenever the Executive Council decides that it is necessary to convene a special general meeting.

13. Monthly general meeting

- (1) The members of the organization shall hold a general meeting once in every month, and consideration and recommendation of applications made by members to obtain loans from the respective community based bank, and the monitoring of loans obtained by members from the samurdhi community based bank and the consideration of the said monitoring reports shall especially be done at this meeting.
- (2) The action plan for the succeeding year shall be prepared and adopted at the first monthly general meeting held after the annual general meeting.
- (3) The Treasurer or his representative shall table a monthly income and expenditure report at every monthly general meeting and resolutions shall be adopted and recorded for its consideration and the depositing of the balance in the account maintained at the samurdhi community based bank, after retaining a substantial cash balance for the revolving fund

14. Notices:

- (1) The Secretary shall give notices of the meetings to all members eligible to attend the respective meeting prior to 14 days of that meeting in an appropriate:

Provided that, a notice of a special general meetings, shall be sent at least prior to 5 working days.

- (2) In the case of a meeting held due to an urgent requirement respective notice may be sent through short message service to the mobile telephone number provided last by the respective member or by sending an email to the email address, if any, provided by the member.

CHAPTER 05

Financial matters

15. Funds of the Organization-

- (1) The Organization shall have its own fund.
- (2) There shall be paid into such Fund-
 - (a) membership fees;
 - (b) donations approved by the Director General;
 - (c) income earned through projects operated, and contracts implemented by the organization according to the directives of the Department;
 - (d) departmental grants;
 - (e) loan interest;
 - (f) funds held by the Organization or deposited in any bank in the name of the Organization immediately prior to the date of coming in to operation of this constitution;
- (3) All funds of this regional Organization shall be deposited in an account in the relevant samurdhi community based bank.
- (4) The funds of the Organization shall only be used for achieving the objectives of the Organization.

16. Financial Supervision

The Organization shall –

- (a) inspect and supervise all activities carried out utilizing the funds of the samurdhi community based organizations functioning within its area of authority; and
- (b) make recommendations in respect of such activities and submit the same to the samurdhi district committee established under section 19 of the Act.

SCHEDULE C

CONSTITUTION AND ADMINISTRATION STRUCTURE OF THE SAMURDHI COMMUNITY BASED BANKING UNION.

PREFACE

For the promotion of the economic development process in accordance with the Samurdhi Act No. 1 of 2013, enacted by the Parliament of the Democratic Socialist Republic of Sri Lanka, and to revitalize the gigantic objective of empowering the national policy for the eradication of poverty and ensuring the social justice, paying proper attention to small scale entrepreneurs and the rural people who had not been given priority by the present financial market in providing services, keeping foremost the broad objective of providing micro finance facilities and in order to make efficient the regularizing, regulating and supervision of samurdhi community based banks and samurdhi community based banking societies and with the objective of creating a policy framework for these, this Samurdhi Community Based Banking Union (hereinafter referred to as the “Union”) is being established under the Department of Samurdhi Development, with the participation of all samurdhi community based banks and samurdhi community based banking societies.

CHAPTER 01

BASIC MATTERS

1. Address –

2. Vision : Micro finance strength for sustainable development

3. Mission : To guide all samurdhi community based banks and samurdhi community based banking societies towards providing micro financial services to the samurdhi beneficiaries efficiently and effectively for social empowerment along with the promotion of positive and eco-friendly attitudes.

4. Membership : (1) All registered samurdhi community based banking societies shall obtain the membership of the Union;

(2) To obtain membership, any registered samurdhi community based banking society shall at least buy one share in its name and subscribe to the share capital of this Union;

(3) The nominal value of a share shall be Rupees Five Thousand (Rs.5000/=).

5. Objectives

(a) to promote a viable network of samurdhi community based banking societies coordinating the samurdhi community based banks;

(b) to provide technical guidance for samurdhi community based banks and samurdhi community based banking societies to efficiently operate the financial market;

(c) to motivate samurdhi beneficiaries to get involved with formal micro financial banking activities;

(d) to regularize samurdhi community based banks and Samurdhi community based banking societies and promote their efficiency;

- (e) to provide assistance to the Department of samurdhi development (hereinafter referred to as the “Department”) to create a policy frame work for samurdhi community based banks and samurdhi community based banking societies; and
- (f) to promote the enterprises that will be created through the investment strength of samurdhi beneficiaries.

- 6. Powers and functions**
- (a) to monitor the affairs of samurdhi community based banks and samurdhi community based banking societies;
 - (b) to provide refinance facilities to samurdhi community based banking societies;
 - (c) to work toward the implementation of the functions and the accomplishment of the objects of the samurdhi community based banks and samurdhi community based banking societies;
 - (d) to issue guidelines for the purposes prescribed by regulations;
 - (e) to act as a reinsurer for samurdhi community based banking societies;
 - (f) to accept deposits in the name of samurdhi community based banking societies;
 - (g) to call for reports when necessary from all samurdhi community based banks and samurdhi community based banking societies operated island wide;
 - (h) to assist the Department in the administrative matters in respect of the samurdhi community based banks and samurdhi community based banking societies through circulars; and
 - (i) to open accounts in any government bank in the name of Samurdhi Community Based Banking Union maintained and operated by the Chairman.

- 7. Administration Structure**
- (1) Management of the affairs of the Union shall be performed by a Board of Directors (hereinafter referred to as the “Board”) comprising of the following fifteen members -
 - (a) nine persons, being the Chairmen of samurdhi community based banking societies elected to represent nine Provinces (hereinafter referred to as the “elected Directors”) of whom the Chairman and the Vice Chairman of the Board shall be selected;
 - (b) three persons from the Department, namely -
 - (i) the Director in charge of the Micro Finance Division of the Department;
 - (ii) the Deputy Director of the Micro Finance Division of the Department; who shall be the Secretary to the Board;
 - (iii) the Director in charge of the Community Based Organization Division of the Department;
 (hereinafter referred to as the *ex-officio* Directors) and
 - (c) three persons nominated by the Director General (hereinafter referred to as the “nominated Directors”).

- (2) Elected Directors of the Board shall be selected by the compromise of the Chairmen of all samurdhi community based banking societies, at a meeting convened for that purpose.
- (3) Every elected Director of the Board shall hold office for a term of one year from the date of his appointment to the Board and is eligible for re-appointment by the majority of votes of the members of the Union:

Provided however, no elected Director is eligible for re-appointment for any two consecutive years, for the membership of the Board.
- (4) The names of the members of the Board shall be sent to the Director-General.
- (5) Where there is no compromise in selecting any member from any samurdhi community based banking society to the Board of the Union, a secret ballot shall be held amongst the member Chairmen of samurdhi community based banking societies subject to the provisions referred to in paragraph (2).
- (6) During the secret ballot referred to in paragraph (5), each member Chairman of a samurdhi community based banking society other than the Chairman to be elected, is entitled for one vote.
- (7) During the elections referred to in paragraphs (5), an officer authorized by the Director-General shall act as the Returning Officer.
- (8) Where there is only one administrative district for any Province, or where there is a nomination from only one administrative district of a Province, the same member from the same administrative district may be elected to the Union for two or several consecutive years.
- (9) Even though the nominated members hold the posts at the pleasure of the Director General, they may resign from their posts by a letter addressed to the Director General.

Chairman and Vice Chairman (10) The Chairman and the Vice Chairman shall be elected by secret ballot from amongst the nine Directors elected in accordance with paragraph (1).

- (11) Every Director is entitled to one vote. No Director is entitled to cast his vote for himself for election as the Chairman or the Vice Chairman. No Director shall refrain from voting.
- (12) The secret ballot referred to in paragraph (10), shall be conducted by the Secretary. The Director who has obtained the highest number of votes shall be elected as the Chairman and the Director who has obtained the next highest number of votes shall be elected as the Vice Chairman.
- (13) If any two elected Directors receive an equal number of votes at the secret ballot referred to in paragraph (10), the Secretary shall elect the Chairman and the Vice Chairman by the drawing of lots.

Secretary

- (14) The Deputy Director of the micro finance division of the Department shall function as the *ex officio* Secretary of the Union.

- 8. Disqualification to be a Director –** A person shall be disqualified from being appointed or continuing as an elected Director of the Board, if he-
- (a) reaches 70 years of age;
 - (b) convicted of an offence by a court of law and sentenced to imprisonment;
 - (c) is or becomes a member of the Parliament, or of a Provincial Council, or of a Local Government Authority;
 - (d) is or becomes the President of the Republic;
 - (e) is or becomes the Governor of any province;
 - (f) is or becomes an employee of a bank or a finance institution; and
 - (g) is physically and mentally disabled.

CHAPTER 02

MEETINGS

- 9. Annual general meeting:** The Secretary shall, under the directions of the Board conduct the annual general meeting of the members, during the first quarter of each calendar year and the following business shall be conducted at every annual general meeting:-
- (a) election of the Board of the Union for the relevant year;
 - (b) considering the progress review report for the previous year;
 - (c) considering the progress review report of the previous year in respect of the samurdhi community based banking system;
 - (d) review the progress achieved in the accomplishment of the objectives of the Union.
 - (e) obtaining approval for the statement of accounts of the previous year.
- 10. Special general meeting** (1) The Chairman shall direct that a special general meeting be convened when a written request is made by not less than one fourth of the members to hold a special general meeting.
- (2) A special general meeting may be convened at any time decided by the Board where there is a requirement to convene a special general meeting.
- 11. Meetings of the Board** (1) Meetings of the Board may be summoned, from time to time, due to management requirements, and the date, time and place of next meeting shall be decided at the meeting.
- (2) The date, time and place of the first meeting of the Board shall be determined at the annual general meeting.
- (3) The Board shall meet at least once in every three months.

- 12. Minutes of meetings**
- (1) Minutes of all meetings shall be signed by the Secretary and the Chairman and be kept in record.
 - (2) Where there is a direction required to be send to any samurdhicomunity based bank or samurdhicomunity based banking society as per the minutes of any meeting, the Secretary shall forthwith refer such direction to the relevant bank or banking society.
- 13. Notices:**
- (1) The Secretary shall send notices of every meeting to every samurdhicomunity based banking society eligible to attend such meeting.
 - (2) Every notice shall be sent through registered post to the principal office of the respective banking society:

Provided however, all notices delivered to the respective banking society in any other reasonable manner and accepted by such society shall be deemed to be duly delivered.
 - (3) Notices of the meetings shall be sent prior to at least fourteen days of the date of the meeting.
 - (4) In addition, every such notice shall be exhibited in the notice board of the principal office of the Union, and such notices shall be exhibited for a period of not less than seven days prior to the meeting:

Provided that, a notice of a special general meeting shall be sent at least prior to five working days.
 - (5) In the case of a meeting of the Board held due to an urgent matter the respective notice may be sent through Short Message Service (SMS) sent to the mobile phone number provided last by the respective member of the Board or by to the email address provided by such member.
- 14. Quorum**
- (1) The quorum for a meeting of the Board shall be seven member sincluding at least five elected Directors, one *ex-officio* director and one nominated Director.
 - (2) The quorum for a general meeting is such number of members equivalent to one third of the total membership.
 - (3) Any elected or nominated Director who fails to attend three consecutive meetings of the Board without notice, shall be deemed to be removed from office. A new Director shall be appointed to the Board, having regard to the provisions of Paragraph 7(1).
- 15. Power of voting**
- (1) Every samurdhi community based banking society which is a shareholder of the Union shall be entitled to vote to pass any resolution at any general meeting and in the event of the equality of votes the person presiding shall be entitled to a casting vote.
 - (2) Every resolution shall be passed by simple majority of votes, other than those are determined by the Board which shall be passes by a two thirds majority of the votes of the members present and voting.
 - (3) The Chairman, or in the absence of the chairman the Vice Chairman, or in the absence of both the Chairman and the Vice Chairman, any member of the Executive Committee who is present on behalf of any respective samurdhi community based banking society shall be entitle to vote on behalf of such society at any general meeting of the Union.

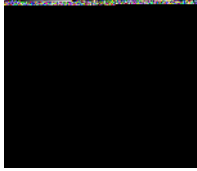
- (4) The Chairman of the Board shall preside at every meeting of the Banking Union. In the absence of the Chairman, the Vice Chairman shall preside, and in the absence of both the Chairman and the Vice Chairman, one Director shall be elected from amongst the elected Directors present to preside at such meeting.

CHAPTER 03

FUND

- 16.** (1) The Union shall have its own fund.
- (2) There shall be paid into the fund-
- (a) all such sums of money accrued from issuing shares to Samurdhi community based banking societies;
 - (b) all such sums of money as may be provided from time to time by the Department; and
 - (c) all such sums of money that may be received as profits and interests of investments.
- (3) The moneys of the fund shall be deposited in one or more banks approved by the Director-General.
- (4) Management of the funds deposited in any such bank shall be administered by the Board, subject to the direction of the Director General.

Schedule D



MEMBERSHIP CARD

.....Community Based Organization

District :..... D. S. Division :.....G. S. Division :.....

Register Number :

Name of the member :

Address :

Date of Birth :

Naitonal Identity Card :

Issued Date :

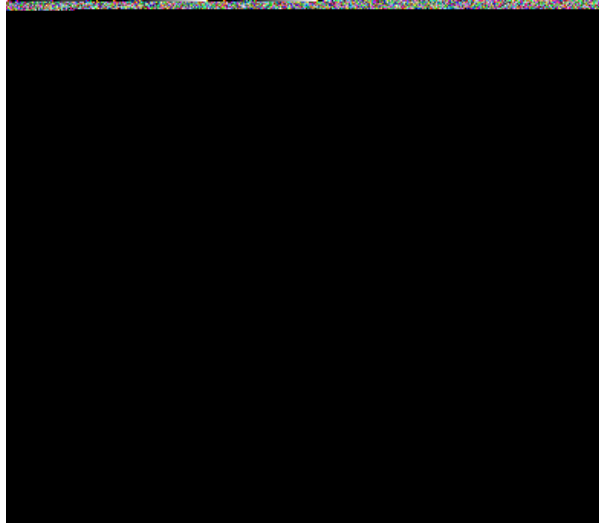
.....
Chairman,

.....
Secretary

Samurdhi Develoment Officer :.....

.....
Samurdhi Manager,
(Official Stamp)

Schedule E



L.D.B 13/2013 (Regulations)

SAMURDHI ACT, No. 1 OF 2013

REGULATIONS made by the Minister of Social Empowerment and Welfare under section 42 read with sections 25(2) and 29 (2) of the Samurdhi Act, No. 1 of 2013.

S. B. DISSANAYAKE (M. P.),
Minister of Social Empowerment and Welfare

Colombo,
06th March 2017.

REGULATIONS

1. These Regulations may be cited as the Samurdhi Regulations, No.2 of 2017.
2. These regulations provide for the registration of samurdhi community based banks and samurdhi community based banking societies and other matters incidental thereto.
3. (1) Every samurdhi community based bank established under section 25 of the Act and samurdhi community based banking society established under section 29 shall register with the Director General under a name approved by the Director General.
(2) The name of every samurdhi community based bank or samurdhi community based banking society under which such bank or society is registered shall include an expression indicating the area of authority of the relevant bank or society and shall include the expressions “Community Based Bank” or “Community Based Banking Society”, as the case may be .
4. The applications for registration of samurdhi community based banks and samurdhi community based banking societies shall be made to the Director General, substantially in the forms, specified, respectively, in Part 1 and Part 2 of Schedule A hereto along with the registration fee.
5. (1) Upon receipt of an application of a samurdhi community based bank or a samurdhi community based banking society made under regulation 4, the Director General shall direct an officer of the Department authorized in that behalf by him to verify the facts stated in the application through reliable sources and make recommendations as to whether it is appropriate to register the relevant bank or society.
(2) The Director General shall register the relevant bank or society within a period of thirty days of the date of receipt of such application, taking into consideration the recommendations obtained under paragraph (1).
(3) Where it appears to the Director General, after taking into consideration the recommendations obtained under paragraph (1), that it is not appropriate to register the relevant samurdhi community based bank or a samurdhi community based banking society seeking such registration, he may refuse to grant the registration for reasons assigned.
(4) Decision of the Director General shall be communicated to the relevant samurdhi community based bank or the samurdhi community based banking society, within a period of fourteen days of the date of receipt of such application.
(5) The Director General shall issue Certificates of Registration, in the formats specified, respectively in Part 1 and Part 2 of Schedule B hereto, to every samurdhi community based bank and to every samurdhi community based banking society registered under these regulations.

(6) Registration of every samurdhi community based bank or samurdhi community based banking society shall be renewed by making an application under regulation 4, at least thirty days prior to the thirty first day of March of every year.

6. The Board of Directors of the samurdhi Community Based Banking Union which shall be established under section 34 of the Act, shall determine the following matters relating to samurdhi community based banks and samurdhi community based banking societies and shall issue written guidelines, from time to time, in respect of the same :-

- (a) appointment, number of members, term of office, removal and resignation of the Governing Body of each samurdhi community based bank and samurdhi community based banking society;
- (b) holding of meetings of the Governing Bodies of the Samurdhi community based banks and samurdhi community based banking societies, the quorum for such meetings and the conduct of business at such meetings;
- (c) appointment of the staff and other service providers for samurdhi community based banks and samurdhi community based banking societies for the accomplishment of their objects:

Provided however, the Director General shall issue any guideline for the purposes of this regulation, until the first Board of Directors of the Samurdhi Community Based Banking Union is appointed as prescribed by regulations.

7. (1) The Board of Management of the samurdhi community based banks and samurdhi community based banking societies appointed under section 33 of the Act, (hereinafter referred to as the “Board of Management”) shall, from time to time, determine all matters relating to the supervision and regulation of financial activities of the samurdhi community based banks and samurdhi community based banking societies, including the following and shall issue directions, from time to time, for the same :-

- (a) the registration fee for samurdhi community based banks and samurdhi community based banking societies.
- (b) allowances payable to members of the Governing Bodies of samurdhi community based banks and samurdhi community based banking societies for attending the meetings;
- (c) remuneration to be paid to the staff, and payments to be made to the service providers, if any, of samurdhi community based bank and samurdhi community based banking societies;
- (d) loans and other financial services that may be provided by a samurdhi community based bank to its members and the terms and conditions applicable to such services such as the period of credit of loans, interest rates for loans and deposits and the maximum amount of loans;
- (e) financial services that may be provided by a samurdhi community based bank to non- members of such bank and the terms and conditions applicable to such services.

(2) All decisions of the Board of Management shall be taken by the majority of votes, at a meeting convened for taking any such decision of which one half of the members of the Board of Management are present and voting.

8. (1) The shares of any samurdhi community based bank shall be held by the members of the samurdhi community based organization or organizations operating within the area in respect of which such bank is established under section 25(1) of the Act .

(2) Every shareholder of a samurdhi community based bank shall be deemed to be a member of such samurdhi community based bank and be entitled to receive the micro- financing services provided by such bank.

9. (1) The shares of any samurdhi community based banking society shall be held by the registered samurdhi

community based banks operating within the area in respect of which such banking society is established under section 29(1) of the Act .

(2) Every shareholder of a samurdhi community based banking society shall be deemed to be an institutional member of such samurdhi community based banking society and be entitled to receive the services relating to micro-financing network established by such banking society.

10.(1) The shares of the Samurdhi Community Based Banking Union shall be held by the samurdhi community based banking societies registered under these regulations.

(2) Every shareholder of the Samurdhi Community Based Banking Union shall be deemed to be an institutional member of such Union and be entitled to receive the services offered to such institutional members by such Union.

11. In these regulations, unless the context otherwise requires-

“Act” means the Samurdhi Act, No. 1 of 2013;

“Director General” means the Director General of the Department appointed under section 3 of the Act;

“Department” means the Department of Samurdhi Development established under section 2 of the Act;

“Governing Body” means the Board of Management of a samurdhi community based bank or an Executive Committee of a samurdhi community based banking society, as the case may be.

Schedule A - Part I

For Office use
Ref. No.
Date of receipt of application :
Registration No. of Bank :
Signature of authorized officer :

Application for the registration of Samurdhi Community Based Banks

- (1) Name of Samurdhi Community Based Bank :
 - (2) Address :
 - (3) Telephone No. : Email address :
 - (4) Area of authority : Province District
- Divisional Secretaries Division (the geographical area of authority being the area of authority covered by the Community Based Organization stated in annexure 01)
- (5) Administrative number assigned to the District :
 - (6) Administration number of the Divisional Secretaries Division under which the Bank comes :
 - (7) Number assigned to the Bank/Zone :
 - (8) Name of Community Based Banking Society under which the bank comes
 - (9) Details of general meetings (annexure 02)
 - (10) Details of Board of Management (annexure 03)
 - (11) Details of shareholders of bank (as at 31.12.20....)

31/12/20

	No.	Amount
Females		
Males		
Total		

(12) As per financial statement as at 31.12.20 :.....

Total assets :.....

Total liabilities :.....(annexure 04)

(13) Net profit or loss for the year ending.....as per statement of income (annexure 05)

(14) Year for which registration has been applied :.....

Band of Ceylon/People's Bank cheque No.....dated.....for Rs.....
has been sent as the annual registration fee. It is hereby certified that the information furnished above is correct, and it is kindly requested to register our Bank be registered in the Department of Samurdhi Development.

Signature of Hon. Chairman :-

Name :-

Official seal :-

Signature of Hon. Secretary :

Name :-

Official seal :-

It is hereby certified that the information above and the information shown in the annexure are correct.

Name of Senior Manager of Samurdhi Community Based Banking Society :-

Signature :-

Name of Community Based Banking Society :-

Annexure 01

List of Community Based Organizations coming under the area of authority of the Samurdhi Community Based Bank,.....

Name of Divisional Secretary Division:-

Name of Community Based Bank :-

Serial No	Grama Niladhari Division and Number	Name of Community Based Bank	Address
01		1	
		2	
		3	
		4	
		5	
02		6	
		7	
		8	
		9	
		10	
03		11	
		12	
		13	
		14	
		15	
04		16	
		17	
		18	
		19	
		20	
05		21	
		22	
		23	
		24	
		25	

Note

(This document should be submitted only when registration takes place for the first time, and when furnishing details annually for registration, only changes of Community Based Organizations should be forwarded through this document.)

GENERAL MEETINGS AND MEETINGS OF BOARD OF MANAGEMENT

Date annual general meeting was held

Dates special general meetings were held, as applicable

Meetings of Board of Management

Number of meetings held during this year

Date last meeting was held

Meetings not held due to lack of a quorum

Note

A copy of the minutes of the general meeting where the Board of Management of the Community Based Bank was elected, shall be annexed to this, certified by the officer authorized by the Director General for that purpose.

DETAILS ABOUT BOARD OF MANAGEMENT

Tel No:

Name of Chairman

--	--

Name of Vice Chairman

--	--

Name of Secretary

--	--

<i>Names of members of the Board of Management (including names of Chairman and Vice Chairman)</i>	<i>Address</i>	<i>Name of Community Based Organization</i>

Name of the Divisional Secretaries Division:-

Name of Community Based Bank:-

Samurdhi Community Based Bank.....
Financial statement as at.....

	Year	Year	Difference %
Assets			
Liquid assets			
Non liquid assets			
Investments			
Loans			
Stationery stock			
Receivables			
Other assets			
Property, plant and equipment			
Total assets			
Liabilities			
Deposits			
Refinancing			
Payables			
Reserves			
Funds			
Other			
Claims			
Total liabilities			

We hereby certify that the accounting records submitted herewith along with the Balance Sheet as at.....and the statement of income prepared for the year ending....., are correct.

Signature of the Manager:

Signature of the Chairman:

Name :

Name :

Date :

Date :

Samurdhi Community Based Bank.....

Statement of Income for the year ending.....

	Year.....	Year.....	Difference (%)
1 Interest income			
2 Interest expenditure			
3 Net interest income			
4 Other income			
5 Operating income			
Operating expenditure			
1 Administrative costs			
2 Establishment costs			
3 Insurance cover expenditure			
4 Provision for reserves			
5 Other expenditure			
6 Net Profit/(Loss)			

The above information is certified correct.

Signature of the Manager:
Name
Date

Signature of the Chairman:
Name
Date

Schedule A - Part 2

For Office use
Ref. No.
Date of receipt of application :
Registration No. of Bank :
Signature of authorized officer :

Application for the registration of Samurdhi Community Based Banking Societies

- (1) Name of Samurdhi Community Based Banking Society :.....
- (2) Address :.....
- (3) Telephone No. :.....Email address :.....
- (4) Area of authority :..... Province :..... District :.....
Divisional Secretaries Division :.....
- (5) Administrative number assigned to the District :.....Administration of the
Divisional Secretaries Division :.....
- (6) Names of Community Based Banks coming under the Samurdhi Community Based Banking Society
:.....
- (7) List of executive committee members elected (annexure 01) :.....
- (8) As per financial statement as at 31/12/20....
Total assets :..... (annexure 02)
Total liabilities :.....
- (9) Net profit or loss for the year ending..... as per statement of income (annexure 03)
- (10) General meetings
Date annual general meeting was held :.....
Dates special general meetings were held :.....
- (11) Year for which registration has been applied :.....

Bank of Ceylon/Peoples Bank cheque no datedforRs has been sent as the annual registration charge. It is hereby certified that the information furnished above is correct, and it is kindly requested that our Banking Society be registered in the Department of Samurdhi Development.

Signature of the Hon Chairman:-
Name:-
Official seal:-

Signature of Hon Secretary:-
Name:-
Official seal:-

It is hereby certified that the information above and the information shown in the annexure are correct.

Name of the officer appointed for the Divisional Secretaries Division (Headquarters Manager)

Signature:

Name of the Divisional Secretaries Division

Name of Community Based Banking Society.....

Name of Chairman	Address	Telephone No.
Name of Vice Chairman	Address	
Name of Secretary	Address	

Details of other Executive Committee members

[illegible]

A copy of the minutes of the annual general meeting where the Executive Committee Members of the Community Based Banking Society were elected, shall be annexed to this, certified by the officer authorized by Director General for that purpose.

Samurdhi Community Based Banking Society

Financial statement as at.....

	Year	Year	Difference (%)
Assets			
Liquid assets			
Non liquid assets			
Savings deposits			
Other assets			
Receivables			
Stationery stock			
Refinancing receivable			
Investments			
Doubtful investments			
Property, plant and equipment			
Total assets			
Liabilities			
Payables			
Refinancing loans payable			
Other liabilities			
Funds			
Reserves			
Claims			
Total liabilities			

We hereby certify that the accounting records submitted herewith along with the statement of accounts as at.....and the statement of income prepared for the year ending....., are correct.

Signature of the Senior Manager:
Name :
Date :

Signature of the Chairman, Executive Committee:
Name
Date :

Samurdhi Community Based Banking Society

Income statement for the year ending

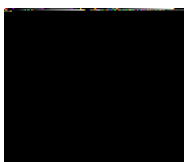
	Year	Year
Operational Income		
Less		
Operational Expenditure		
Administrative costs		
Establishment costs		
Cost of insurance cover		
Reserves		
Other expenditure		
Interest expenditure - refinancing loans		
Not profit/loss		

The above information is certified correct.

Name of Manager :.....
Signature

Name of Chairman
Signature.

Schedule B – Part 1



CERTIFICATE OF REGISTRATION OF COMMUNITY BASED BANKS UNDER THE
DEPARTMENT OF SAMURDHI DEVELOPMENT

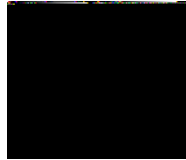
CERTIFICATE OF REGISTRATION

It is hereby certified that the Community Based Bank,.....of.....has
been registered in the Department of Samurdhi Development under registration no....., in accordance
with provision 25 (2) of the Samurdhi Act, No. 1 of 2013.

Date.....

DIRECTOR GENERAL
DEPARTMENT OF SAMURDHI DEVELOPMENT

Schedule B – Part 2



CERTIFICATE OF REGISTRATION OF COMMUNITY BASED BANKING SOCIETIES UNDER THE
DEPARTMENT OF SAMURDHI DEVELOPMENT

CERTIFICATE OF REGISTRATION

It is hereby certified that the Community Based Banking Society,.....of.....has been
registered in the Department of Samurdhi Development under registration no....., in accordance with provision 29
(2) of the Samurdhi Act, No. 1 of 2013.

Date.....

DIRECTOR GENERAL
DEPARTMENT OF SAMURDHI

03 - 947/2